DIGITALAIKART ORIGINAL

The US Visa & Immigration Playbook

2026-27 — Indian Edition

The complete system for Indian students and professionals through the 2026 US immigration reset — and the strongest Plan B routes if America closes.

H-1B • F-1 • OPT • Green Card • Canada • Germany • UK • Australia • Return to India

Every rule, fee and date verified from USCIS, the Federal Register, IRCC, GOV.UK, Make it in Germany, Home Affairs and the Income Tax Department.

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0. How the system actually works

Before the rules, the machinery. Six ideas explain almost every immigration question you will ever ask, and most bad advice comes from confusing them.

A visa is not a status

A visa is a travel document that lets you ask to enter. Your **status** is the permission you have once you are inside — recorded on your Form I-94. Your visa can expire while your status is still valid, and your status can end while your visa still has years left. The date that governs you is the one on the I-94, not the one on the visa sticker.

Nonimmigrant versus immigrant

Every temporary category — F-1 student, H-1B worker, L-1 transferee, H-4 and L-2 dependants — is a **nonimmigrant** status. A green card is **immigrant** status, and permanent. Moving from one to the other is the whole game: the temporary route is easy to enter and hard to stay in; the permanent route is hard to enter and then stable.

The four questions that decide everything

1. **Which category fits me?** Student, worker, transferee, dependant, or extraordinary ability. This sets every other rule.
2. **Who files?** An employer, a school, or you. Most employment routes are employer-driven; the National Interest Waiver is the main self-petition exception.
3. **What is my queue?** For temporary status, the cap and lottery. For a green card, your priority date.
4. **What is my fallback?** The route you execute if the primary one fails. Without one, a refusal becomes a crisis instead of a detour.

Selected is not approved

In the H-1B lottery you can be **selected** and still be refused. Selection only buys you the right to file a petition. The petition is where the job, the wage and the employer are tested. Treat selection as the start of the process, not the end.

The priority date

For a green card, your **priority date** is your place in the queue — usually the date the government received the labour certification (PERM) or the immigrant petition. The monthly Visa Bulletin says which priority dates may move forward. For India in EB-2 and EB-3, that date is many years behind the rest of the world.

Who decides what

Decision	Who makes it
Whether to select your H-1B registration	USCIS (the immigration agency)
Whether to approve your petition	USCIS
Whether to give you a visa abroad	The US State Department (consular officer)
Whether to let you in at the border	US Customs and Border Protection
Whether to certify a PERM labour application	The Department of Labor
Whether your priority date can move	The State Department's Visa Bulletin

The categories you will meet

Category	Who it is for	Who files
F-1	Academic students	School issues the I-20; you apply for the visa
H-1B	Specialty-occupation workers	Employer
L-1	Intracompany transferees	Employer
O-1	People of extraordinary ability	Employer or agent
H-4 / L-2	Dependants of H-1B / L-1 holders	Linked to the principal
EB-1 / EB-2 / EB-3	Employment-based green cards	Employer (NIW: you)

Why this matters

Because no single office controls your whole journey, a plan that satisfies only one of them can still fail. This playbook keeps the chain in view: employer, USCIS, consulate, border, and the queue.

PART 1

The 2026 reset

In a single year the United States rewrote more of the skilled-immigration rulebook than in any year since 2017. This part sets out what changed, on what date, and what it costs you — so the rest of the playbook makes sense.

1. Why the old plan stopped working

If you were planning on the advice that worked in 2023 — get a US degree, find an employer, enter the H-1B lottery, then wait for a green card — that plan now has three new costs and one new lottery. Here is the year in one table.

Date	Change	What it does to you
19 Sep 2025	H-1B $100,000 proclamation	New H-1B petitions filed on or after 21 Sep 2025 need a $100,000 payment unless you fall in an exempt category.
9 Sep 2025	H-1B / L-1 extension fees	$4,000 per H-1B and $4,500 per L-1 extension, for employers with 50+ US staff where over half hold H-1B/L-1.
30 Oct 2025	EAD auto-extension ended	Renewal work permits filed on or after 30 Oct 2025 no longer get an automatic extension. H-4, L-2 and E spouses affected.
15 Dec 2025	Consular online vetting	The State Department began vetting the online presence of H-1B and H-4 applicants; some appointments were rescheduled.
27 Feb 2026	Weighted H-1B lottery	Effective for FY2027. Higher wage levels now get more entries in the selection pool.
15 Sep 2026	F-1 fixed admission	"Duration of status" ends. Students are admitted for a fixed period, capped at four years.
8 Oct 2026	PERM suspension	Eight large employers barred from the green-card labour-certification programme, indefinitely.
14 Oct 2026	Deference proposal; EAD final rule	DHS proposes letting officers re-assess prior approvals; the EAD auto-extension removal is finalised.

Three of these are done and binding. One (the deference change) is a proposal, open for public comment until 13 November 2026, and not yet in force. This playbook marks the difference every time it matters.

The direction of travel is consistent: the US is filtering for higher salary, tighter vetting and shorter, more tightly policed stays. A plan built for the 2023 rules will quietly fail in 2026-27.

2. The four H-1B changes, and who they hit

H-1B is still the main work visa for Indian professionals — Indians have taken the largest share of H-1B approvals for years. But four changes now decide whether you get one and what it costs.

The $100,000 fee

A Presidential Proclamation of 19 September 2025 imposed a $100,000 payment on certain **new** H-1B petitions filed on or after 21 September 2025. USCIS FAQs confirm the payment does **not** apply to:

- People who already hold an H-1B visa.
- Petitions filed before 21 September 2025.
- H-1B renewals.
- Current H-1B holders travelling in and out of the US.
- F-1 students already in the US moving to H-1B by change of status.

Exceptions may be granted in rare national-interest cases. A separate proposal would add a $103,265 fee on H-1B cap-subject petitions — that is a proposal, not a fee anyone pays today. Treat any "you must pay $100,000" message from an agent as a red flag until you have read the USCIS FAQ yourself.

The weighted lottery

The old lottery gave every registration the same chance. From FY2027, under a final rule published on 29 December 2025 and effective 27 February 2026, each registration is entered into the selection pool based on the highest wage level its offered salary meets for that occupation and location:

OEWS wage level	Entries in the pool	DHS estimated selection chance
Level IV	4 entries	about 61%
Level III	3 entries	about 46%
Level II	2 entries	about 31%
Level I	1 entry	about 15%

Those percentages are DHS estimates, not guarantees — your real odds depend on who else registers. Each person is still counted only once toward the cap. The practical message: a higher offered salary now buys a materially better chance, and entry-level roles are the ones squeezed.

Extension fees and the deference proposal

Since 9 September 2025, large H-1B employers (50+ US staff, over half on H-1B/L-1) pay $4,000 per H-1B extension. Separately, DHS has proposed removing the rule that officers must generally defer to a prior approval — the change that, after 2017, pushed extension denial rates as high as 24% before they fell back to about 3.5%. It is open for comment until 13 November 2026 and is not yet in force.

What this means for you

If you are choosing between offers, the salary level now has a second value: it changes your lottery odds. If you are an employer's first H-1B hire at a low wage, your registration is the weakest in the pool. Build your fallback now, not after a non-selection notice.

3. The student route: F-1 admission, grace period and screening

"Duration of status" — the rule that let an F-1 student stay as long as they kept studying — is gone. A DHS final rule published on 17 July 2026 and effective 15 September 2026 replaces it with a fixed period of admission.

- **Fixed admission.** F students are admitted for the length of the programme on their Form I-20, up to a maximum of four years, plus 30 days to arrive and 30 days to depart.
- **Shorter grace period.** The time to prepare for departure or change status after graduating is cut from 60 days to 30 days.
- **Extensions are now your job.** Need more time for your programme, a new programme, or post-completion OPT or STEM OPT? You must file for an Extension of Stay (EOS) with USCIS — recommended 180 days before your Admit Until Date — or leave and re-enter for a new admission.
- **Already in the US?** If you were in the US under duration of status on 15 September 2026, you may stay to your I-20 programme end date or the end of your OPT, capped at four years plus a 60-day departure period (no later than 14 November 2030).
- **Cap-gap protected.** A student with a timely filed H-1B cap petition may stay until the petition is approved or 1 April of the fiscal year requested, whichever comes first.

Screening is tighter too. From 15 December 2025 the State Department vets the online presence of H-1B and H-4 applicants, and visa-appointment backlogs have pushed many applicants' dates into 2026. The lesson: a university admission is no longer the end of planning. Visa timing is now part of the decision, not an afterthought.

What to do before you accept an offer letter

1. Confirm the programme is long enough to matter — and short enough to finish inside a four-year admission.
2. Check whether it is STEM-eligible, because that unlocks the 24-month STEM OPT extension.
3. Map your likely graduation date against the March H-1B registration window.
4. Budget for the fixed-admission reality: a late OPT application has no slack now.

The one date to write down
Your Admit Until Date on Form I-94. Miss it and you are out of status. Diary a reminder 180 days before it, and again 90 days before, so an EOS is filed in time.

4. The green-card squeeze: PERM suspension and the backlog

On 8 October 2026 the US Department of Labor suspended eight employers from the Permanent Labor Certification (PERM) programme — the first step most employers take to sponsor an H-1B worker for a green card. No new or pending PERM applications involving these firms will be accepted or processed, indefinitely:

- Microsoft, Adobe, Cognizant, Infosys, Tata Consultancy Services, Wipro, HCL Technologies and Capgemini.

Cognizant had already been suspended on 8 September 2026. The Ministry of External Affairs has said PERM is distinct from H-1B and that the suspension does not, by itself, affect the validity of existing H-1B visas — but it can disrupt the green-card path for employees of the named companies.

Even without the suspension, the queue is the real problem. As of December 2025, Indians made up about 996,600 — 79% — of the roughly 1.26 million people in the first three employment-based green-card preferences.

Category	Indians waiting (Dec 2025)	India Final Action Date (Oct 2026 bulletin)
EB-1 (extraordinary ability)	about 51,600	1 February 2023
EB-2 (advanced degree)	about 731,600	1 November 2013
EB-3 (skilled / professional)	about 213,400	1 January 2014

The National Foundation for American Policy estimates that an Indian who files a labour certification or immigrant petition in January 2026 or later faces a potential wait of about 179 years in EB-2 and 38 years in EB-3, against roughly 4-5 years in EB-1. Those are projections under current law, not personal timelines — but the message is blunt: for EB-2 and EB-3, the wait is measured in decades, not years. India is limited to 7% of the annual family and employment preference visas, about 25,620 for FY2027.

Read this before you wait
If your only plan is "employer-sponsored EB-2 or EB-3", you are planning for a decades-long queue. EB-1 and self-petition routes (chapter 10) are the ones worth engineering for. Plan B (Part 3) is not a consolation prize — for many people it is the faster route to permanent residence.

5. The EAD trap: the automatic extension is gone

This is the change most likely to catch a family off guard. On 30 October 2025 an interim final rule ended the practice of automatically extending an expiring work permit (EAD) while a renewal is pending. A final rule published on 14 October 2026 reaffirmed it. If you filed to renew on or after 30 October 2025, there is no automatic extension.

It matters most for dependants whose work permit is tied to someone else's status:

- **H-4 spouses** (category C26) who hold an EAD.
- **L-2 spouses** (A18) and **E-visa spouses** (A17).
- Other categories that used to rely on the up-to-540-day bridge.

USCIS recommends filing a renewal up to 180 days before the EAD expires. If a renewal is not decided in time, employment authorisation can lapse — and working without authorisation has consequences for future immigration benefits.

How to avoid a gap

1. Note the expiry date printed on every EAD in the household.
2. File the renewal as soon as the 180-day window opens — do not wait.

3. If the renewal is still pending close to expiry, talk to your employer's immigration team about a planned leave of absence rather than working unauthorised.
4. Keep every receipt notice (Form I-797C) with the expired card.

Action today
Find the expiry date on every EAD in the household. Put a reminder 180 days before it. If a renewal window is already open, file now rather than waiting for a decision that may not come before the card expires.

PART 2

The US routes, step by step

Knowing what changed is not the same as knowing what to do. This part is the walkthrough: the H-1B sequence, how to read the green-card queue, the student bridge, the alternatives, and the mistakes that cost people their status.

6. H-1B end to end

The H-1B is employer-driven: you cannot file for yourself. Your job is to make sure your employer files correctly and on time, because a mismatch between the registration and the petition can now get the petition rejected or denied.

The sequence, for the FY2027 cycle

1. **Registration (4-19 March 2026).** The employer registers each candidate in a USCIS online account and pays the $215 fee per registration. The registration must state the highest OEWS wage level the offered salary meets, the SOC code and the area of intended employment (city, state, county).
2. **Selection.** If registrations exceed the cap, USCIS runs the weighted selection. The cap is 65,000, plus 20,000 for US advanced-degree holders.
3. **Selection notice.** If selected, the employer files Form I-129 for you within the filing window, with a certified Labor Condition Application (LCA).
4. **Evidence of the wage level.** The petition must include evidence of the basis of the wage level chosen — for example a printout from the Department of Labor wage search for your SOC code and location as of the registration date.
5. **Consistency.** The petition must match the registration (same SOC code, wage at or above the registered level). If something changed, explain it and document it — unexplained mismatches can mean rejection or denial.

How the wage weighting plays out

Suppose the same role exists at two employers. Employer A offers a wage that meets Level II for that occupation and location; Employer B offers a wage that meets Level IV. Both registrations are valid, and both candidates remain eligible. But B's registration enters the pool four times and A's twice. If the cap is oversubscribed, B's candidate is far more likely to be selected — without either candidate being more qualified. This is why the salary on the offer is now part of your immigration strategy, not just your career decision.

The RFE traps

- A wage level on the petition lower than the registration, with no explanation.
- A SOC code that does not match the registration or the LCA.
- A specialty-occupation argument that does not show the role needs a degree in a specific field.
- A worksite or itinerary that was not disclosed.

What you can control: choose the employer and role with the wage level in mind, keep your documents consistent, and never let an agent "adjust" your salary figure on paper. The mismatch you create to look stronger is the exact thing that gets a petition denied.

Ask your employer these three questions

1. Which OEWS wage level does my offer meet for my SOC code and location? 2. Which SOC code and worksite will you put on the registration? 3. Will the petition match the registration exactly? If they cannot answer, get the details in writing before March.

7. Reading the Visa Bulletin: where your green card really is

The Visa Bulletin is published monthly by the State Department. It is the single document that tells you how far your green-card queue has moved. Most people never read it, and that is why they are surprised.

The two dates that matter

- **Final Action Date.** The priority date that must be earlier than your own before an immigrant visa can actually be issued. This is the hard gate.
- **Date for Filing.** A more generous date that may let you file for adjustment of status earlier, if USCIS says that chart may be used that month.

Both are shown per category (EB-1, EB-2, EB-3) and per chargeability area. India has its own column because it is heavily oversubscribed. Under the per-country limit, each country gets 7% of the annual family and employment preference visas — about 25,620 for FY2027.

Reading the October 2026 bulletin

India category	Final Action Date (Oct 2026)	What it means
EB-1	1 February 2023	Priority dates before this can be finalised
EB-2	1 November 2013	Roughly 11 years behind the rest of the world
EB-3	1 January 2014	Also many years behind

Note the comparison: for most other countries the EB-2 Final Action Date in the same bulletin was 1 January 2025 — more than eleven years ahead of India. EB-2 India had been listed as "Unavailable" in August and September 2026 (all its numbers for FY2026 used up) before returning with the new fiscal year in October. That is the pattern to expect: numbers reset in October, then retrogression as demand consumes them.

How to use it

1. Find your category (EB-1, EB-2 or EB-3) and the India column.
2. Compare the Final Action Date with your own priority date.
3. If your date is earlier, you can move forward; if it is later, you wait.
4. Read the bulletin every month — dates can move backwards (retrogress) without warning.

The honest reading

If your priority date is from 2025 or 2026 in EB-2 or EB-3, the bulletin is not going to reach you for a very long time. Plan around that, not against it.

8. The student bridge: F-1 to OPT to H-1B

For most Indian students the route to work runs through practical training. Learn the sequence and the dates before you choose a programme.

Stage	What it is	The catch
Curricular Practical Training (CPT)	Work tied to your curriculum, before graduation.	Must be genuinely part of the course; heavy CPT use can complicate later OPT.
Optional Practical Training (OPT)	Up to 12 months of work after graduation in your field.	You must apply in time; unemployment limits apply.
STEM OPT extension	A further 24 months for eligible STEM degrees.	Requires an eligible degree, an employer in E-Verify and a training plan.
H-1B cap-gap	Bridges you from OPT end to H-1B start if your petition was timely filed.	Only if you are the beneficiary of a timely, cap-subject petition.

With fixed admission now in force, the timing has less slack. Your Admit Until Date may not stretch to cover a late OPT application, and the grace period after your programme is 30 days, not 60. Build the calendar backwards from graduation: know your OPT application window, your STEM OPT window if eligible, and the March registration window for the next H-1B lottery.

A worked timeline

Point in time	What you should have done
12 months before graduation	Decided whether you are aiming for OPT at all, and checked your programme's OPT eligibility.
6 months before graduation	Booked any tests or documents your employer or school needs; mapped your March H-1B window.
Graduation month	Confirmed your programme end date and your 30-day departure window in writing.
Within the OPT application window	Filed for OPT; do not wait for the I-20 to expire first.
The March before you want H-1B	Employer registers you in the lottery with the correct wage level.
If selected	Employer files the I-129 in the window; cap-gap protects you if OPT ends first.

The single best timing decision
Graduate in a year that lets you be in the US, on OPT, for a March H-1B registration. That is often the difference between one lottery attempt and two.

9. L-1, O-1 and the alternatives

H-1B is not the only door. When the lottery does not select you, these are the routes worth knowing — and their limits.

Route	Who it fits	The limit to respect
L-1 (intracompany transfer)	You have worked for the company abroad for at least one continuous year in the last three and are moving to a US affiliate.	Employer must qualify; the one-year abroad rule is strict.
O-1 (extraordinary ability)	A record of achievement — awards, publications, high salary, judging, press — that meets the regulatory criteria.	Evidence-heavy; weaker profiles are refused.
Cap-exempt H-1B	Roles at universities, affiliated non-profits and certain research bodies.	Employer must genuinely be cap-exempt; not a workaround for a normal company.
Canada / Germany / UK routes	Anyone whose US plan is stalling and who wants a faster route to residence.	See Part 3 — each has its own salary and language thresholds.

Be careful with visa categories that do not apply to Indian citizens. The TN visa is for Canadian and Mexican citizens, and the H-1B1 is for Chile and Singapore. Agents sometimes sell these to Indian applicants anyway; they cannot be used by you.

When to use which

- **Working for a multinational with an India office?** Ask about L-1 before you leave the company.
- **Strong publication or award record?** Get an O-1 assessment from a US attorney.
- **Targeting academia or research?** Look at cap-exempt H-1B employers.
- **None of the above, and the lottery failed?** Move to a Plan B route in Part 3.

10. Green-card routes and the honest timeline

There are three employment-based categories that matter for a skilled Indian professional, and one self-petition route worth engineering for.

Route	What it is	Who sponsors	Reality (India)
EB-1	Extraordinary ability, outstanding researchers, certain multinational managers and executives.	Employer, or self-petition for some sub-categories.	The shortest queue — about 4-5 years in NFAP's estimate.
EB-2	Advanced degree or exceptional ability. Includes the National Interest Waiver.	Employer (via PERM), or self-petition for NIW.	Backlogged by decades; NFAP estimates a 179-year wait for 2026 filers.
EB-3	Skilled workers and professionals.	Employer (via PERM).	Also heavily backlogged; NFAP estimates about 38 years.
EB-2 NIW	A waiver of the job-offer and PERM requirement where your work is in the national interest.	You petition for yourself.	The route to research when PERM is blocked — but you must meet the standard.

The National Interest Waiver is the one lever an individual controls. Because it does not need an employer's PERM, it can keep moving even when your employer is caught in a PERM suspension. It is not a loophole — you must show your proposed work has substantial merit and national importance,

that you are well positioned to advance it, and that waiving the job offer benefits the US on balance. Speak to a licensed US immigration attorney before assuming you qualify.

The planning conclusion
Treat EB-2/EB-3 as a long, uncertain wait, not a plan. If permanent residence in the near term is the goal, the honest answer is: engineer for EB-1 or NIW if you genuinely qualify, and take the Plan B routes in Part 3 seriously.

11. The seven mistakes that cost people their status

Most status problems are not bad luck. They are one of these seven, and every one is avoidable.

1. **Letting the I-94 date pass.** The Admit Until Date is the law, not the visa sticker. Diary it.
2. **Filing an EAD renewal late.** With the automatic extension gone, a late filing can leave you working without authorisation.
3. **Assuming OPT will be granted in time.** With fixed admission and a 30-day grace period, there is no slack for a late application.
4. **Taking a job outside your status.** Working before authorisation, or beyond what it permits, jeopardises every future benefit.
5. **Trusting an agent's version of a rule.** Read the official portal yourself; rules changed repeatedly through 2025-26.
6. **Letting a paper mismatch stand.** A registration, petition and reality that do not agree is the classic denial.
7. **Having no Plan B until the refusal letter arrives.** By then, the fastest alternative routes have long application queues.

The 24-hour rule
Whenever a deadline or a document is in front of you, check it against the official portal within 24 hours. Speed of verification is the cheapest insurance in immigration.

PART 3

Plan B, done properly

A Plan B is only real if it is specific: a named route, a real salary threshold, a named document, a timeline. Each chapter below gives you exactly that, from the official source.

12. Choosing your route: a decision framework

There is no single best country — only the best fit for your age, skills, savings, family and appetite for paperwork. Score yourself honestly on the table, then read the chapter for the route that fits.

Route	Best if you have	Watch out for
US H-1B	A US employer willing to sponsor, and a higher-than-entry salary.	The weighted lottery; the $100,000 new-petition fee; a decades-long green-card queue.
US student bridge	Funds for a US degree and time to build OPT experience.	Fixed admission, a 30-day grace period, and no slack in the OPT timeline.
Canada	Funds for study, or strong French, or Canadian work experience.	The study-permit cap, the CAD 22,895 funds rule, and a frozen PGWP field list.
Germany	A recognised degree, and some German or strong English.	Anabin/ZAB recognition; distance-learning degrees are rejected.
UK	A graduate-level sponsored role paying at least the threshold.	Employer-led; you cannot self-start; the going rate may exceed the general floor.
Australia	Points from age, experience, qualifications and English.	The 65-point threshold is a floor, not a guarantee of invitation.
Return to India	A skill in demand at home, or a GCC role.	Plan your days in India around the RNOR tax window.

A simple way to decide

1. Write your three strongest assets: money, qualifications, language.
2. Cross out every route whose threshold you cannot meet in 12 months.
3. Of what remains, pick the one with the shortest path to stable residence.
4. Commit to it for 12 months before you switch again.

One primary, one backup

Pick a primary route and one backup, and work both on a calendar. Switching plans every month is the most expensive strategy of all — it resets your documents, your tests and your timeline.

13. Canada: Express Entry and the PGWP

Canada is the most-used Plan B for Indian professionals, and also the one that has tightened fastest. Know the current rules, not the 2023 ones.

Study route

- A study permit generally needs a provincial or territorial attestation letter confirming a space under the national intake cap.
- The proof-of-funds threshold rose to CAD 22,895 (from 1 September 2026).
- The Student Direct Stream (SDS) has been discontinued.
- The Post-Graduation Work Permit (PGWP) now requires language proficiency (CLB 7 in English or NCLC 7 in French for degree holders) and, for non-degree programmes, graduation in an eligible field of study. For 2026 the eligible-field list is frozen.

Work route

Express Entry ranks you in the pool by Comprehensive Ranking System (CRS) score and invites the top candidates in rounds. Job-offer points were removed from the CRS on 25 March 2025, so a Canadian job offer no longer adds the 50 or 200 points it once did. The 2026 categories include French-language proficiency, healthcare and social services, STEM, trades, education, transport, and several categories for people with Canadian work experience.

Recent 2026 draw type	Typical CRS cut-off
Canadian Experience Class	about 516-523
French-language proficiency	about 382-420
Healthcare and social services	about 475
Trades	about 476
Provincial Nominee Program	about 725-772

Read that table carefully. A general applicant without Canadian experience or a nomination needs a high score. The realistic Canadian plan is: study in Canada, work on a PGWP, then qualify through the Canadian Experience Class or a provincial nomination — or build French to unlock the low-cut-off French draws.

14. Germany: the EU Blue Card and the Opportunity Card

Germany has no lottery. It has two routes an Indian professional can use, both with published salary thresholds for 2026.

Route	What it is for	2026 thresholds
EU Blue Card	A residence title for qualified employment with a job offer.	€50,700 gross/year general; €45,934.20 for shortage occupations, recent graduates and IT specialists without a formal degree.
Opportunity Card	A job-search visa for people who do not yet have an offer.	Proof of funds of €1,091/month; up to 1 year, extendable to 2 years once you find qualified work.

The detail that trips up Indian applicants is degree recognition. Germany checks your qualification through the Anabin database (your university should carry an "H+" rating and your degree should be rated as equivalent) or a Statement of Comparability from ZAB. For an Indian degree you also need your university to confirm you studied on-site in regular mode — a distance-learning degree will not do.

For the Opportunity Card, if your qualification is not recognised you must score at least six points on Germany's points system and show German at A1 or English at B2. If it is recognised, you can get the card as a skilled worker without the points. Experience matters here: the German consulate in India notes that job-seekers who arrive without prior research rarely succeed, and some German helps enormously.

Your order of operations

1. Check your university and degree on Anabin.
2. If needed, apply for a ZAB Statement of Comparability.
3. Get your university's on-site (regular mode) confirmation if you studied in India.
4. Secure a job offer for the Blue Card, or proof of funds for the Opportunity Card.
5. Prepare language evidence: German A1 or English B2 for the points route.

Start with Anabin, not with an agent
Before you pay anyone, check your university and degree on Anabin yourself, and read the Opportunity Card and Blue Card pages on make-it-in-germany.com. If your degree is not recognised, no agent can change that — only a ZAB Statement of Comparability can.

15. The UK: Skilled Worker

The UK route is employer-led, like the H-1B, but with published salary floors and no lottery. Your job must be with a Home Office-approved sponsor, and the role must normally be skilled to RQF Level 6 (graduate level) or above.

Salary situation	Threshold (2026)
Standard Skilled Worker	£41,700 per year, or the going rate for the role, whichever is higher
New entrant (under 26, recent graduate, or in professional training)	£33,400
STEM PhD relevant to the job	£33,400
Non-STEM PhD relevant to the job	£37,500
Job on the Immigration Salary List or Temporary Shortage List	£33,400

Two cautions. First, the going rate for your specific occupation can be higher than the general threshold — check the going-rates table for your job code. Second, the new-entrant discount caps your total stay on that basis, so it is a bridge, not a destination. The UK is best seen as a strong route if you can secure a graduate-level sponsored role; it is not a route you can self-start.

16. Australia, and a note on the Gulf

Australia runs a points-tested system through SkillSelect. The Skilled Independent (subclass 189), Skilled Nominated (subclass 190) and Skilled Work Regional (subclass 491) visas all require you to submit an Expression of Interest and meet a minimum threshold of 65 points; points come from age, work experience, qualifications and English proficiency. Meeting the threshold does not guarantee an invitation — invitations go to the highest-ranked candidates in each round, and cut-offs move.

The Gulf is a different kind of move: it is employment-led rather than residence-led, and the rules differ by country and change often. If you are considering it, work only from the official portal of the country concerned — the UAE and Saudi Arabia both publish their own skilled-worker and long-term residence routes — and treat any agent's summary as a starting point, never as the rule.

The general Plan B rule
For every route, verify three things yourself on the official portal before paying anyone: the current salary or points threshold, the document list, and the processing time. Everything else is marketing.

17. Returning to India: the GCC route, money and tax

Returning is a legitimate Plan B, not a defeat — and the 2026 changes have made it more attractive for some. When the US tightened the PERM route, one analyst noted that Indian firms may shift more engineering and global-project work to India through global capability centres (GCCs), creating senior roles at home. For a mid-career professional, a GCC role can mean the same work, without the visa clock.

Your tax status for the first years back

The Income-tax Act, 2025 replaces the 1961 Act from 1 April 2026, but the residential-status logic is the same. You are a resident if you stay 182 days or more in the financial year, or 60 days or more plus 365 days in the last four (Indian citizens and PIOs visiting India get the 182-day test, or 120 days if their India income exceeds Rs. 15 lakh).

The status worth understanding is **Resident but Not Ordinarily Resident (RNOR)**. You are RNOR if you were non-resident in 9 of the 10 preceding years, or stayed 729 days or fewer in the last 7 years. An RNOR is taxed on Indian income, and on foreign income only if it comes from a business controlled in India or a profession set up in India. For many returnees, that means foreign income earned before the move is not taxed again in India.

The return checklist

- Keep your foreign bank account, investments and payslips documented before you return — they set your RNOR position.
- Check whether your foreign retirement accounts are taxed on withdrawal, and take advice before moving them.
- Confirm your EPF and NPS position once you have an Indian employer.
- File the right ITR: residential status determines which form you use.

- Take a chartered accountant's advice on your specific dates — the RNOR window is generous, but only if you plan your days in India around it.

PART 4

Tools you will reuse

Print these. They are the parts you will come back to when an agent, an employer or a deadline is in front of you.

18. The master document checklist

Assemble a master folder once, and you will never scramble again. Keep digital copies in cloud storage and one physical set.

Document	H-1B / work	F-1 / student	Green card / PERM
Passport (valid 6+ months beyond intended stay)	Yes	Yes	Yes
Degree certificates and mark sheets	Yes	Yes	Yes
Transcripts (and credential evaluation if asked)	Yes	Yes	Yes
Resume / CV with no unexplained gaps	Yes	Yes	Yes
Employment offer or I-20	Offer	I-20	Offer
Labour Condition Application (LCA)	Yes	—	Yes (PERM)
Wage-level evidence for the registration	Yes	—	—
Form I-94 and prior approvals	Yes	Yes	Yes
Proof of funds / bank statements	Sometimes	Yes	Sometimes
Medical and police clearances (if asked)	Sometimes	Sometimes	Yes

Never submit a document you cannot stand behind. A mismatch between what you filed and what you can prove is the most common reason a petition or visa stalls.

19. Documents by destination

Each Plan B has its own paperwork. Here is the core list for each, so you can see what you are missing before you commit.

Destination	Core documents	The one people forget
Canada (study)	Provincial attestation letter, letter of acceptance, proof of funds of CAD 22,895, language test.	The attestation letter — without it the application is incomplete.
Canada (Express Entry)	Language test, credential assessment, work-experience letters, Express Entry profile.	A job offer no longer adds CRS points, so do not build the plan around one.
Germany (Blue Card)	Recognised degree (Anabin/ZAB), job offer, salary proof, health insurance.	The university's on-site (regular mode) confirmation for an Indian degree.

Destination	Core documents	The one people forget
Germany (Opportunity Card)	Proof of funds of about €1,091/month, qualification proof, language evidence.	Six points if your qualification is not recognised.
UK (Skilled Worker)	Certificate of sponsorship, salary evidence, English proof, passport.	The occupation-specific going rate, which can exceed the general floor.
Australia (skilled)	Expression of Interest, skills assessment, English test, points evidence.	The skills assessment — it takes time and must be for your nominated occupation.

Work down each list before you spend money on the next step. Most refusals come from a single missing document, not from a weak profile.

20. Costs and timelines at a glance

Approximate figures, current as of October 2026. Fees change — confirm on the official portal before you pay.

Item	Cost	Notes
H-1B registration (FY2027)	$215 per registration	Paid by the employer
New H-1B petition (proclamation)	$100,000	Only certain new petitions filed on/after 21 Sep 2025; many exemptions
H-1B extension fee (large employers)	$4,000	Employer pays; 50+ US staff, >50% on H-1B/L-1
L-1 extension fee (large employers)	$4,500	Same employers
Canada study permit proof of funds	CAD 22,895	From 1 September 2026
Germany Blue Card salary floor	€50,700 / €45,934.20	General / shortage and recent graduates
Germany Opportunity Card funds	€1,091 per month	Blocked account or declaration
UK Skilled Worker salary floor	£41,700	Or the going rate, whichever is higher
Australia points threshold	65 points	To be invited; not a guarantee

Timelines move for reasons you cannot control: weighted-lottery selection, consular appointment backlogs and processing queues. Plan with a buffer of months, not weeks.

21. Scam and agent traps

Every tightening of immigration rules creates a market for people selling certainty they cannot deliver. Recognise the patterns.

- **"Guaranteed H-1B" or "guaranteed selection".** No one can guarantee a lottery outcome. Walk away.
- **"Pay $100,000 and we handle it."** The proclamation fee applies only to certain new petitions, with clear exemptions. Verify against the USCIS FAQ.

- **Fake job offers for the lottery.** Submitting a registration without a genuine job offer breaches the registration attestations and can sink your file.
- **"We will adjust your salary on paper."** A mismatch between registration, petition and reality is exactly what gets petitions denied.
- **Unrecognised-degree shortcuts for Germany.** Only Anabin or a ZAB Statement of Comparability settles recognition.
- **Pressure to pay in cash, fast.** Legitimate fees go to official portals or to the employer. Urgency plus cash is the oldest tell.

The verification habit
Before you believe any claim, find it on an official portal — uscis.gov, federalregister.gov, travel.state.gov, canada.ca, gov.uk, make-it-in-germany.com, immi.homeaffairs.gov.au. If a claim is not there, treat it as unverified.

22. Your 12-month action plan

A plan you can start this week, whatever your situation. Adjust the dates to your own timeline.

When	Do this
This week	Write down every date that governs you: I-94 Admit Until Date, EAD expiry, programme end, visa expiry. Diary a 180-day and a 90-day reminder for each.
Within a month	Decide your primary route and one Plan B from Part 3. Check the official thresholds for both and note what you are missing.
Months 1-3	Close the gaps: language test (IELTS/TOEFL for Canada, or German/English for Germany), degree recognition (Anabin/ZAB), credential evaluation, updated CV.
Months 3-6	For students: lock your OPT and STEM OPT windows against the March H-1B registration. For workers: confirm your employer's registration details (wage level, SOC code, location) before they file.
Months 6-9	File what can be filed early: EAD renewals 180 days out, study permits, Expression of Interest (Australia) or Express Entry profile (Canada).
Months 9-12	Review the outcome honestly. If the US route is not moving, execute the Plan B you already prepared — not one you start researching in a panic.

The one habit that protects you
Re-read the official page for your route once a quarter. In a year like 2026, the rule that was true in January was false by October.

PART 5

Five people, five plans

Rules become clear when you apply them to a person. These five scenarios show how the same changes land differently. They are illustrations, not advice for your own case.

23. Worked scenarios

Scenario 1 — The master's student

Priya is 18 months into a two-year STEM master's in the US. Under fixed admission she is admitted for her programme length; her Admit Until Date is on her I-94. Her plan: finish on time, apply for OPT inside the window, use the 24-month STEM OPT extension, and make sure her employer registers her in the March H-1B lottery while she is on OPT. If the lottery fails, cap-gap does not help her (that is only for a timely petition), so she keeps her Plan B — Canada through Express Entry or a PGWP route — warm.

Scenario 2 — The mid-career professional on H-1B

Arjun has an H-1B with two years left and an approved I-140, but his employer is one of the firms suspended from PERM. His H-1B remains valid — the suspension is about the green-card labour certification, not his visa. His options: an employer that can file PERM, an EB-2 National Interest Waiver if his work genuinely qualifies, or a Plan B country where his experience scores well. He checks the Visa Bulletin each month and plans on a decades-long EB-2 wait.

Scenario 3 — The H-4 spouse with a work permit

Meera works on an H-4 EAD. She filed her renewal on 1 November 2025, after the auto-extension ended, so there is no 540-day bridge. She files early, keeps her receipt notices, and agrees a leave-of-absence plan with her employer in case the renewal is not decided before the card expires. She does not work for a single day without authorisation.

Scenario 4 — The green-card waiter

Rahul has an EB-3 priority date from 2024. Reading the October 2026 bulletin, he sees the India EB-3 Final Action Date is 1 January 2014 — a decade behind his date. He stops treating the wait as a plan, and starts building two things: evidence for a possible EB-2 NIW, and a Plan B route he can execute within a year.

Scenario 5 — The returnee

Sneha decides the US queue is too long and takes a GCC role in Bengaluru. She returns in stages, keeping her days in India low enough to be RNOR for the first years, keeps her foreign account and payslips documented, and takes a chartered accountant's advice before moving her retirement savings. She is not starting over — she is reallocating the same skill to a market that wants it.

The pattern across all five

The people who do well are not the ones with the best luck. They are the ones who wrote their dates down, verified the rules at the source, and had a second route ready before they needed it.

Appendix A — Official portals

Bookmark these. They are the only sources you should trust for a decision.

- **USCIS** (US immigration agency): uscis.gov
- **Federal Register** (every rule and proposal): federalregister.gov
- **Visa Bulletin** (green-card dates): travel.state.gov
- **Canada**: canada.ca/immigration-refugees-citizenship
- **Germany**: make-it-in-germany.com
- **UK**: gov.uk/skilled-worker-visa
- **Australia**: immi.homeaffairs.gov.au
- **India tax**: incometaxindia.gov.in

Appendix B — Glossary

Term	What it means
Cap	The annual limit on H-1B visas: 65,000 plus 20,000 for US advanced-degree holders.
OEWS wage level	The Department of Labor's wage levels (I-IV) for an occupation and location; they now set your lottery weight.
SOC code	The Standard Occupational Classification code that identifies your job.
LCA	Labor Condition Application; certifies wage and working conditions for an H-1B role.
Duration of status (D/S)	The old, open-ended F-1 admission, now replaced by a fixed period.
EOS	Extension of Stay; the application to extend a fixed admission.
OPT / STEM OPT	Post-study work authorisation, 12 months plus 24 for eligible STEM degrees.
PERM	The labor certification step most employers take before an EB-2 or EB-3 green card.
NIW	National Interest Waiver; lets you self-petition for EB-2 without a job offer or PERM.
Priority date	Your place in the green-card queue; the Visa Bulletin shows which dates may move.
CRS	Comprehensive Ranking System; the points score used in Canada's Express Entry.
PGWP	Post-Graduation Work Permit; Canada's open work permit for graduates.
RNOR	Resident but Not Ordinarily Resident; an Indian tax status that limits what foreign income is taxed in India.

Appendix C — Twenty-five questions people ask

Q. Will the $100,000 H-1B fee apply to me?

Only to certain **new** H-1B petitions filed on or after 21 September 2025. USCIS lists clear exemptions: existing H-1B holders, petitions filed before that date, renewals, current holders travelling, and F-1 students changing status in the US.

Q. Does the weighted lottery change my chances if I am a fresher?

Yes. A Level I registration gets one entry; a Level IV gets four. Entry-level roles are the ones squeezed, so a higher salary offer is now worth more than the job title.

Q. My employer is on the PERM suspension list. Is my H-1B cancelled?

No. The Ministry of External Affairs has confirmed the PERM suspension does not by itself affect the validity of an existing H-1B. It affects the green-card path through that employer.

Q. I am on an H-4 with a work permit. Is my EAD still auto-extended?

No, if you filed to renew on or after 30 October 2025. File renewals up to 180 days early so authorisation does not lapse.

Q. I am already studying in the US. Does fixed admission affect me now?

If you were in the US under duration of status on 15 September 2026, you may stay to your I-20 programme end date or OPT end, capped at four years plus 60 days. If you travel and re-enter, you get a new fixed admission.

Q. Do I need to file an extension of stay as a student?

Only if you need more time than your Admit Until Date allows — to finish your programme, start a new one, or do OPT or STEM OPT. USCIS recommends filing 180 days before the date.

Q. Is the 60-day grace period still there after graduation?

No. It is now 30 days.

Q. Can a US job offer still boost my Canadian Express Entry score?

No. Job-offer points were removed from the CRS on 25 March 2025. Canadian work experience, a provincial nomination or strong French now matter far more.

Q. What language score do I need for a Canadian PGWP?

CLB 7 in English or NCLC 7 in French in all four abilities for bachelor's, master's or doctoral graduates.

Q. Can I get a German Opportunity Card without a job offer?

Yes. It is a job-search visa. You need proof of funds of about €1,091 a month, and if your qualification is not recognised you need six points and German A1 or English B2.

Q. Is my Indian degree accepted in Germany?

Only if your university and degree are recognised in Anabin, or you hold a ZAB Statement of Comparability. You also need your university to confirm you studied on-site, not by distance learning.

Q. What is the UK salary floor for a Skilled Worker visa?

£41,700 a year or the going rate for the role, whichever is higher. New entrants, STEM PhD holders and shortage-list roles can qualify lower, from £33,400.

Q. How many points do I need for Australia?

65 is the minimum to be invited, but invitations go to the highest-ranked candidates in each round, so the real cut-off can be higher.

Q. Does returning to India mean I am taxed on everything I earned abroad?

Not necessarily. As Resident but Not Ordinarily Resident you are taxed on Indian income and on foreign income only if it is from a business controlled in India or a profession set up in India. Take advice on your specific dates.

Q. What is a priority date and why does it matter?

It is your place in the green-card queue, usually the date the government received your labour certification or petition. The Visa Bulletin shows which dates may move forward; for India in EB-2 and EB-3 it is many years behind.

Q. Is the National Interest Waiver a shortcut?

No. It removes the job-offer and PERM requirement, but you must still meet a real legal standard on merit, national importance and positioning. Consult a licensed attorney.

Q. Can I self-petition for a green card without an employer?

In some EB-1 sub-categories and through EB-2 NIW, yes. Most other employment routes need an employer.

Q. How long is an H-1B valid for?

Generally an initial period of up to three years, extendable by another three, with further extensions possible for people in certain green-card stages.

Q. What happens if I am selected in the lottery but the petition is denied?

Selection only lets the employer file. A denied petition means no H-1B from that filing; you would need a new selection in a future year, or another route.

Q. Can I change employers on H-1B?

Yes, through a new employer filing a petition, often with portability. Do not start the new job before the filing is properly made — get advice on timing.

Q. Does the F-1 fixed-admission rule apply to J-1 too?

Yes. The same final rule moved F, J and I classifications from duration of status to a fixed period of admission.

Q. Is the deference proposal already law?

No. It was published for comment on 14 October 2026 and is open until 13 November 2026. Until a final rule takes effect, the existing requirement stays in place.

Q. Do I need a job offer for Canada?

Not for Express Entry, and a job offer no longer adds CRS points. You do need to be eligible for one of the programs and to score high enough in a round.

Q. What is the single most important date in my file?

Your Admit Until Date on Form I-94. It is the last day you are authorised to stay.

Q. Where should I check whether a rule is real?

On the official portal for that country: uscis.gov and federalregister.gov for the US, canada.ca for Canada, gov.uk for the UK, make-it-in-germany.com for Germany, immi.homeaffairs.gov.au for Australia.

Appendix D — Templates

Template 1 — asking your employer for the registration details

Use this before the March registration window. It is short, specific and easy for an HR team to answer.

Email to your employer
Subject: H-1B registration details for FY2027 — confirmation request

Hello,

As we approach the H-1B registration window, could you confirm three details for my registration, so we are consistent when the petition is filed?
1. The SOC code you will use for my role.
2. The OEWS wage level my offered salary meets for that SOC code and worksite.
3. The worksite (city, state, county) that will appear on the registration.

Thank you. I would like to keep my records aligned with the filing.

Template 2 — your personal deadline sheet

Fill this in once and keep it where you will see it. It is the single most useful page in the playbook.

Item	My date	Reminder set for
Form I-94 Admit Until Date		180 days and 90 days before
EAD expiry (every person in the household)		180 days before
Programme end / graduation		6 months before
OPT / STEM OPT application window		Window opening
H-1B registration window		1 month before
Visa expiry		3 months before
Plan B target application date		2 months before

Appendix E — Sources and verification

Every rule, fee and date in this playbook was checked against primary sources in October 2026. The main sources were: USCIS pages and newsroom releases; the Federal Register (the H-1B weighted-selection final rule of 29 December 2025; the F-1 fixed-admission final rule of 17 July 2026; the EAD final rule of 14 October 2026; the deference proposal of 14 October 2026); the US Department of State Visa Bulletin for October 2026; the Ministry of External Affairs; the National Foundation for American Policy's August 2026 analysis of employment-based backlogs; IRCC (Canada.ca); GOV.UK; Make it in Germany and the German Federal Foreign Office; the Australian Department of Home Affairs; and the Income Tax Department of India.

Immigration rules change quickly. Use the portals in Appendix A to confirm the current position before acting, and take advice from a licensed immigration professional for your own case. This playbook is general information, not legal advice.

You have read the map. Now pick a route and start the 12-month plan in chapter 22.